

March 5, 2009



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 5967
(THIRTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification cylinders conforming in part with DOT 3HT for shipment of a Division 2.2 gas. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.304(a)(2) and 175.3 in that a non-DOT specification cylinder is not authorized, except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008.

March 5, 20096. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Chlorodifluoromethane or Refrigerant gas R 22	2.2	UN1018	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging (cool gas generator) is a non-DOT specification steel pressure vessel not exceeding 635 cubic inches internal volume and a solid propellant cartridge (including the type approved for transportation under BA 610). The gas generator assemblies authorized are identified by the following part numbers: 25705 through 25709, 25805 through 25809, 26161, and 26201. The pressure vessel and all component parts must be as described in specifications and drawings on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). In addition, the pressure vessel must comply with DOT Specification 3HT (§§ 178.35 and 178.44) except as follows:

§ 178.35(g) *Inspector's report*

Applies except that it must be appropriately modified to reflect identification and compliance with this special permit.

§ 178.44(a) *Type, size and service pressure*

Pressure vessel may be welded but the internal volume may not exceed 635 cubic inches with maximum service pressure of 1,300 psi.

§ 178.44(b) *Authorized steel*

Steel designated 4330V is authorized.

§ 178.44(e) *Welding or brazing*

Welding is authorized. Maximum weld efficiency authorized is 90 percent.

§ 178.44(h) *Openings in cylinders and connections*

Applies except straight threads having at least 4 engaged threads (nominal) are authorized in the side wall openings.

§ 178.44(l) *Flattening test*

Flattening tests are waived based on data filed with the OHMSPA.

§ 178.44(p) *Acceptable results of tests*

(1) Does not apply.

(2) * * *

(i) * * *

(ii) Tensile strength may not exceed 200,000 psi.

(3) and (4) * * *

§ 178.44-23(r) *Marking*

Applicable except each pressure vessel must be marked with the special permit number "DOT-SP 5967" instead of "DOT-3HT".

b. TESTING - Each pressure vessel must be retested and requalified in accordance with § 180.205 and 180.209 and service life limited to 18 years from the date of the original test.

c. OPERATIONAL CONTROLS - The safety relief device must limit the pressure in the cylinder to not exceed 600 psig during transportation.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or

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changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - c. Generators must be packaged in compliance with § 173.301(a) (9).
 - d. Cool gas generators made after October 31, 1983 must comply with the specifications described in the June 27, 1983 application.
 - e. Packages specified herein marked "DOT-SP 5967" and manufactured in accordance with the provisions of the special permit in effect at the time of manufacture, may be transported under the terms of this special permit.
 - f. No new manufacturing is authorized after June 1, 2006.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln